SUPPLEMENTAL TO THE MEMORANDUM OF AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This **SUPPLEMENTAL TO THE MEMORANDUM OF AGREEMENT** is made and entered into by and among:

COMMISSION ON HIGHER EDUCATION (CHED), an agency of the National Government organized and established under the Republic Act No. 7722 otherwise known as the "Higher Education Act of 1994" with office address at the HEDC Bldg., C.P. Garcia Avenue, U.P. Diliman, Quezon City, represented by its Chairman, **J. PROSPERO E. DE VERA III, DPA**, herein referred to as "**CHED**";

-and-

The **PARTIDO STATE UNIVERSITY,** a Higher Education Institution with principal office at Nato, Sagnay, Camarines Sur , represented herein by its President, **RAUL G. BRADECINA, PH.D.,** hereinafter referred to as **"LEAD HEI"**

WITNESSETH that:

WHEREAS, the **CHED** is mandated by law to promote affordable, quality and relevant higher education that is accessible to all; ensure academic freedom and promote its exercise and observance for the continuing intellectual growth, advancement of learning and research, development of responsible and effective leadership, education of high-level and middle-level professionals and the enrichment of our historical and cultural heritage in the Philippines;

WHEREAS, the **CHED** has approved through CEB Resolution No. 852-2017, the Memorandum of Agreement between CHED and the LEAD HEI of "Discovery-Applied Research and Extension for Trans/ Inter-disciplinary Opportunities (DARE TO) Grants under the K to 12 Transition.

WHEREAS, the **PARTIES** entered into a Memorandum of Agreement, herein referred as "The Original MOA", dated December 27, 2017.

WHEREAS, the Original MOA was entered between the parties in accordance with the implementation of LEAD HEI's Approved Project under DARE TO Grants under the K to 12 Transition Program entitled **"COMMUNITY-BASED ABALONE AND OTHER HIGH-VALUE COMMERCIAL MARINE SPECIES HABITAT MANAGEMENT USING SOCIAL MARKETING APPROACH IN LAHUY GROUP OF ISLAND IN CARAMOAN, CAMARINES SUR"** with the approved

Grant Amount of **Six Million Four Hundred Four Thousand Six Hundred Sixty-Four (6,404,664.00).**

WHEREAS, The Original Project Duration is from **May 8, 2018 until May 8, 2020** pursuant to the approved Work and Financial Plan and CEB Resolution Number 852-2017.

WHEREAS, the **LEAD HEI** thru an official communication requested for a First Six Months Extension of project implementation without additional cost to CHED. Said request was approved by the **CHED** through Commission en banc (CEB) Resolution No. 521-2019 Until November 8, 2020;

WHEREAS, the **LEAD HEI** thru an official communication requested for a second project extension without additional cost to CHED due to the limited mobility and access to services during the ECQ/MECQ was observed in the offices of PSU and suppliers of inputs where limited face to face contacts were experienced, thus, slowing down implementation of the remaining activities of the project.. Said request was discussed and the CHED approved **another six (6) months extension** per Commission en banc (CEB) Resolution No. _____ during the Joint Management Committee and Commission en banc Meeting held on April 6, 2021.;

WHEREAS, the **PARTIES** deemed it necessary to supplement the Original MOA to allow the extension of project implementation with concurrence and approval of the Commission en Banc;

WHEREAS, this Supplemental Agreement is entered into pursuant to the original Memorandum of Agreement and CEB Resolution Nos. 852-2017, 521-2019, and 888-2020, that provide for the approval of project extensions. **The second extension shall be for a period of six months effective upon execution of this Supplemental Agreement;**

IT IS HEREBY AGREED as follows:

ARTICLE I
INTERPRETATION

In this Supplemental Agreement words and expressions defined in and rules of interpretation set out in the Original Memorandum of Agreement shall have the same meaning and effect when used in this Supplemental Agreement except where the context requires otherwise.

ARTICLE II
EFFECTIVE DATE AND TERM

The supplemental amendments to the Original Memorandum of Agreement shall take effect from the date of this Supplemental Agreement is signed by all parties and duly acknowledged before the Notary Public and shall terminate upon completion of the Project by the HEI on the designated end date of the extension.

ARTICLE III
AMENDMENTS TO THE MEMORANDUM OF AGREEMENT

Pursuant to Article IX entitled EFFECTIVITY OF THE AGREEMENT of the Original Memorandum of Agreement, the DARE TO Project entitled, **"COMMUNITY-BASED ABALONE AND OTHER HIGH-VALUE COMMERCIAL MARINE SPECIES HABITAT MANAGEMENT USING SOCIAL MARKETING APPROACH IN LAHUY GROUP OF ISLAND IN CARAMOAN, CAMARINES SUR"**, as approved by the Commission through CEB Resolution Number 852-2017 and _____, is hereby extended for another six months starting from the signing of this Supplemental Agreement.

All other provisions of the Original MOA entered into by the PARTIES on December 27, 2017, except as herein amended, shall remain valid and binding.

IN WITNESS WHEREOF, the parties hereunto have affixed their respective signatures this ___ _____day of MAY 2 8 2021, 2021 at Quezon City, Philippines

COMMISSION ON HIGHER EDUCATION
(CHED)
By:

ATTY. LILY FREIDA T. MACABANGUN-MILLA, CESO IV
Officer-in-Charge,
Office of the Executive Director IV

PARTIDO STATE UNIVERSITY
(LEAD HEI)

By:

RAUL G. BRADECINA, PH.D.

President

Signed in the presence of:

MARY SYLVETTE T. GUNIGUNDO, Ph.D.
OIC - Director IV, Office of Planning,
Research and Knowledge Management
Commission on Higher Education

JOEL B. BALASTA

Project Leader

ACKNOWLEDGEMENT

REPUBLIC OF THE PHILIPPINES)
CITY OF QUEZON CITY) *S.S.*

BEFORE ME, a Notary Public, for and in the City of QUEZON CITY personally appeared:

	ID No.	Issued on/Issued at
J. PROSPERO E. DE VERA III, DPA	CO-0394	January 29, 2018 CHED Central Office
RAUL G. BRADECINA, PH.D.	PRC-0656586	October 26, 2000 Legazpi, Albay

Known to me, to be the same person (s) who executed the foregoing instrument and who acknowledged to me that the same is their free and voluntary act and deed, and that of the institutions respectively represented.

The foregoing instrument refers to the Supplemental MOA consisting of four (4) pages, including the pages in which this acknowledgment is written, signed by the parties, including their instrumental witnesses on each and every page thereof and sealed with my notarial seal.

MAY 2 8 2021 QUEZON CITY

WITNESS MY HAND AND SEAL at the place and on the date first above written.

NOTARY PUBLIC
Until December 31,

ATTY. ELISEO S. CALMA, JR.
Notary Public for Q.C. Until Dec. 31, 2021
Adm. Matter No. NP-067 (2020-2021)
PTR No. 0694702-D/01-04-2021 Q.C.
IBP No. 141058/01-04, 2021
Roll No. 60193
MCLE COMP. NO. VI-0012817 Valid Until 4-14-22
20 Kamagong St., Sapamanna Vill. East Fairview Q.C.
TIN No. 138-541-197-000

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